SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 6778 of 2013 (YEAR: 2020)

CORAM: U.U. LALIT, INDU MALHOTRA, KRISHNA MURARI

Gurshinder Singh
... Appellant(s) / Petitioner(s)
Versus
Shriram General Insurance Co. Ltd.
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986
Sections:	Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Held that if vehicle theft is reported to police immediately, mere delay in intimating the insurance company cannot be a ground to repudiate a genuine insurance claim.

RATIO DECIDENDI

The Court held that: Held that if vehicle theft is reported to police immediately, mere delay in intimating the insurance company cannot be a ground to repudiate a genuine insurance claim. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Gurshinder Singh v. Shriram General Insurance Co. Ltd. (Civil Appeal No. 6778 of 2013) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, particularly Section 14 Consumer Protection. Held that if vehicle theft is reported to police immediately, mere delay in intimating the insurance company cannot be a ground to repudiate a genuine insurance claim.

OPERATIVE ORDER

ORDER: Decided